Superior Court of California

City and County of San Francisco

Appellate Division

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
10/10/2024
Clerk of the Court
BY: DORA LOUIE
Deputy Clerk

People of the State of California, *Plaintiff and Respondent*, v. **Andrew Enriquez,** *Defendant and Appellant.*	No. APP-24-8800 Super. Ct. No. 24000063

Appeal from judgment of conviction
Superior Court of California, City and County of San Francisco
Hon. Braden C. Woods

APPELLANT'S APPLICATION TO FILE SUPPLEMENTAL OPENING BRIEF

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Attorneys for Defendant and Appellant Andrew Enriquez

Defendant and Appellant Andrew Enriquez applies for leave to file the attached supplemental opening brief, addressing a single issue: whether the trial court erred by refusing to dismiss the case after the prosecution conceded that a speedy trial violation had occurred. For the reasons stated in the attached declaration of counsel, good cause exists to file this supplemental opening brief.

October 10, 2024

Respectfully submitted,

/s/

Oliver Kroll

/s/

Steve Lau

DECLARATION OF STEVE LAU

I, Steve Lau, declare:

1. I am an attorney licensed to practice in California. I was appointed to represent Defendant and Appellant Andrew Enriquez in this criminal appeal. I make this declaration in support of my request to file a supplemental opening brief.

2. The Court granted me two extensions of time to file the opening brief: first, an extension to August 26, 2024, because of illness and family commitments; second, an extension to October 10, 2024, because of the need to augment the appellate record.

3. My opening brief was filed on September 18, 2024, well in advance of the October 10, 2024 deadline. It focused on the claim that the prosecutor's peremptory challenge against a prospective juror violated Code of Civil Procedure section 231.7.

4. On October 10, 2024, I was contacted by Oliver Kroll, an attorney in the Research Unit of the San Francisco Public Defender's Office. After speaking with Mr. Kroll, I now consider that there is merit in the claim that the trial court erred by refusing to dismiss the case after the prosecution conceded that a speedy trial violation had occurred.

5. After our conversation, Mr. Kroll and I immediately prepared the attached supplemental opening brief.

6. Good cause exists to permit filing of the supplemental opening brief for the following reasons.

7. *First*, the brief is timely: it is filed within the deadline the Court previously set for Mr. Enriquez's opening brief. It also complies with the word limit because, in aggregate, the opening brief and the supplemental opening brief contain less than 6,800 words.

8. *Second*, no prejudice would arise to the prosecution from the filing of the supplemental opening brief. No respondent's brief has yet been filed, and Mr. Enriquez would have no objection to the deadline for the respondent's brief being reset.

9. *Third*, filing the supplemental opening brief would conserve judicial resources. If the Court finds that the speedy trial claim has merit, it would dispose of this appeal, eliminating the need to consider the section 231.7 claim. Moreover, in another criminal appeal with a similar record, *People v. Ernesto Rodriguez* (no. APP-24-8761), the prosecution has conceded that the judgment should be reversed on speedy trial grounds; if the supplemental opening brief is filed, the prosecution may make a similar concession in this case, further simplifying this appeal.

10. *Finally*, declining to file the supplemental opening brief would gravely prejudice Mr. Enriquez, since it would prevent this Court from granting him relief from the violation of his speedy trial right based on the Court of Appeal's decision in *Mendoza v. Superior Court* (2024) 103 Cal.App.5th 865.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on October 10, 2024, at San Francisco, California.

/s/

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Steve Lau